



CHAPTER 73.

An Act to empower local authorities to make fit for housing purposes buildings damaged by war, and for purposes connected therewith.

[1st September 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Where a local authority are satisfied—

- (a) that any building, whether a house or not, is in any respect unfit for housing purposes by reason of war damage; and
- (b) that the building is capable at reasonable expense of being rendered fit for housing purposes; and
- (c) that lack of housing accommodation in the area of the authority makes it necessary that the building should be rendered so fit; and
- (d) that the person having control of the building is unable or unwilling to carry out the works necessary to render it so fit;

Power for local authorities to repair war damaged buildings.

the following provisions shall have effect—

- (i) the local authority, with the consent of the Minister of Health, may serve upon the person having control of the building a notice stating that at the expiration of such period, not being less than fourteen days, as may be

specified in the notice, they intend to execute such works as may be so specified and stating that in the opinion of the authority those works are necessary to render the building fit for housing purposes;

- (ii) at the expiration of the period specified in the notice, the local authority, after considering any representations made by the person in control of the building, may enter upon the building and execute the works specified in the notice, or such other works, being works which in the opinion of the authority will render the building fit as aforesaid, as may be agreed between the authority and the person having control of the building :

Provided that where the local authority are also satisfied that temporary repairs to the building are immediately necessary to avoid danger to health, they may at any time, without serving such a notice as aforesaid and without the consent of the Minister of Health, enter upon the building and execute such repairs, but without prejudice to their powers under paragraphs (i) and (ii) of this section.

Application
of the
Housing
Act, 1936.
26 Geo. 5.
& 1 Edw. 8.
c. 51.

2.—(1) The Housing Act, 1936, shall have effect as if the foregoing section were included in Part II of that Act, subject however to the modifications and exceptions hereafter specified in this section.

(2) Subsection (4) of section nine of the said Act (which defines the person having control of a house) and section nineteen of that Act (which provides for protection of owners of houses) shall have effect as if references to a house included references to a building.

(3) Subsections (3), (4), (5) and (6) of section ten of the said Act (which relate to the recovery of expenses incurred by an authority under that section) shall have effect as if references to that section included references to section one of this Act and as if references to a house included references to a building :

Provided that no demand for expenses incurred by a local authority under this Act shall be made under subsection (3) of the said section ten until the end of the period of the present emergency.

(4) For the purpose of section fifteen of the Housing Act, 1936 (which relates to appeals), a notice under section one of this Act shall not be deemed to be a notice requiring the execution of works.

3.—(1) The Minister of Health may lend money for the purposes of section one of this Act to any local authority on such terms as he, with the approval of the Treasury, may fix, and, notwithstanding anything in any enactment, a local authority may borrow on the terms so fixed for those purposes. Loans for purposes of Act.

(2) Any sums required by the Minister of Health for the purpose of a loan under this section shall be paid out of moneys provided by Parliament, and any sums received by him by way of repayment of a loan under this section or by way of interest thereon, shall be paid into the Exchequer.

4.—(1) Sections one and three of this Act shall in their application to Scotland have effect as if for references to the Minister of Health there were substituted references to the Secretary of State. Application to Scotland.

(2) The Housing (Scotland) Acts, 1925 to 1938, shall have effect as if section one of this Act were included in Part I of the Housing (Scotland) Act, 1925, subject, however, to the modifications and exceptions hereafter specified in this section. 15 & 16 Geo. 5. c.15.

(3) Subsection (2) of section fourteen of the Housing (Scotland) Act, 1930 (which defines the person having control of a house), shall have effect as if references to a house included references to a building. 20 & 21 Geo. 5. c.40.

(4) Subsections (2) and (3) of section fifteen of the said Act of 1930, and subsection (1) of section eleven of the Housing (Agricultural Population) (Scotland) Act, 1938 (which relate to the recovery of expenses incurred by an authority under the said section fifteen), shall have effect as if references to the said section fifteen included references to section one of this Act: 1 & 2 Geo. 6. c. 38.

Provided that no demand for expenses incurred by a local authority under this Act shall be made under subsection (2) of the said section fifteen, nor shall any charging order in respect of such expenses be made, until the end of the period of the present emergency.

(5) For the purposes of section twenty of the said Act of 1930 (which relates to appeals), a notice under section one of this Act shall not be deemed to be a notice requiring the execution of works.

Provision
as to
Northern
Ireland.
10 & 11
Geo. 5. c. 67.

5. Notwithstanding anything in the Government of Ireland Act, 1920, the Parliament of Northern Ireland shall have power to make laws, in respect of matters exclusively relating to the portion of Ireland within their jurisdiction or any part thereof, for purposes similar to the purposes of this Act.

Short title,
interpreta-
tion and
extent.

6.—(1) This Act may be cited as the Housing (Emergency Powers) Act, 1939.

(2) In this Act—

(a) the expression “war damage” means damage caused by enemy action or in repelling enemy action or by measures taken to mitigate the consequences of damage caused by enemy action or in repelling enemy action;

(b) the expression “period of the present emergency” means the period beginning with the date of the passing of this Act and ending with such day as His Majesty may by Order in Council declare to be the day on which the emergency that was the occasion of the passing of this Act came to an end.

(3) No provision of this Act, except the provisions of the last foregoing section, shall extend to Northern Ireland.

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